TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JUNE 28, 2021
MINUTES

STAFF REPORT

Present: Barry Wolff, Chair, Stephen Duke, Stephen Wood, Aaron Butner, Elliott Barrow, Megan Stevens, Julian Hopkins.
Staff: Mike Robertson, Mac DeFord, Lynnette Lynes

Mr. Wolff called the meeting to order at 6:01 pm.

A. Approval of Agenda

- *Mr. Wood moved for approval of the agenda. Mr. Hopkins seconded the motion. All in favor.*

B. Approval of Minutes

- *Ms. Stevens moved for approval of the minutes. Mr. Duke seconded the motion. All in favor.*

C. Public Comment

- Chris Colman, 118 Pitt St, stated that he filed the appeal of the Zoning Administrator's determination for 123/125 Pitt St. He suggested that this ruling should be reversed so that the character of the Town can be preserved. He suggested that this matter should be seriously considered.

D. General Correspondence

All correspondence was linked to the agenda and distributed to the Board.

E. Explanation of Procedures

- Mr. Wolff reviewed the procedures with the public.

F. Administration of Oath

- Mr. Wolff administered the oath to those speaking.

G. Business

1. **Case V-18-2021, 1060 Deleisseline Blvd., TMS# 562-02-00-001. Request for relief from the strict application of §156.225 Provisions for Tree Removal (C) to allow removal of a 26-inch Swamp Oak.**

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Daniel Barone, owner, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Wood moved for denial based on the findings that the arborist indicated that the tree is a healthy tree with no visible defects, and does not met all criteria for approval, particularly that the denial would not unreasonably restrict or prohibit the use of the property. Mr. Duke seconded the motion. All in favor.*

2. **Request by Applicant to Defer to July Meeting Case A-5-2021, 234 Middle Street, TMS# 532-09-00-025. Appeal of Administrative Official's refusal to allow modification of the tree protection zone for a 53-inch live oak tree or, in the alternative, to allow removal of 53-inch live oak tree.**
   Record of Zoning Determination Correspondence
3. **Request by Applicant to Defer to July Meeting Case V-19-2021, 234 Middle Street, TMS# 532-09-00-025. Request for relief from the strict application of §156.227 (A)(6) Modifications to Tree Protection Zones and §156.225 Removal of Historic and Significant Trees to allow encroachment into the tree protection zone or removal of the 53-inch Live Oak tree.**

- *Mr. Wood moved to accept the deferral as requested by the applicant. Mr. Duke seconded the motion. All in favor.*

4. **Case V-20-2021, Coleman Boulevard, TMS# 517-15-00-099. Request for relief from the strict application of §156.318 (P)(4)(h)(2) to allow 50% building frontage. The ordinance requires 70% building frontage.**

- Mr. Robertson reviewed the staff report with the Board.

- Mr. Giles Branch and Mr. Losse Knight reviewed the request with the Board.

- Mr. Charlie Moore, 1108 Sea Island Crossing Lane, suggested that the requests for this property meets the criteria for a variance and asked that it be granted.

- There being no further comments, Mr. Wolff closed public comment.

- *Ms. Stevens moved for approval of the variance based on the findings that there are extraordinary property and cannot meet the code because of the size of the lot, does not apply to other properties as this is a unique property, would not be detrimental to others and would create a safer entrance and exit to the property. Mr. Butner seconded the motion. All in favor.*

5. **Case V-21-2021, Coleman Boulevard, TMS# 517-15-00-099. Request for relief from the strict application of §156.318 (P)(4)(a) to allow shrubbery only in five (5) foot buffer on east side of parcel. The ordinance requires canopy and understory trees in addition to shrubbery in the five (5) foot buffer.**

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Branch and Mr. Knight reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Barrow moved for denial based on the findings that it does not meet the criteria in that the denial would not unreasonably restrict or prohibit the use of the property, and that there would be a detriment to the public good if the required trees were not installed as the trees provide needed oxygen*

through photosynthesis. Mr. Duke seconded the motion. Motion passed on a 5 to 2 vote with Mr. Wolff, Mr. Barrow, Mr. Hopkins, Mr. Duke, and Mr. Wood in favor; Mr. Butner, and Ms. Stevens opposed.

6. **Case V-22-2021, Coleman Boulevard, TMS# 517-15-00-099. Request for relief from the strict application of §156.108 (A)(2) to allow a fifty (50) foot two-way drive aisle curb cut separation. The ordinance requires a 150-foot two-way drive aisle curb cut separation.**

- Mr. Robertson reviewed staff comments with the Board.
- Mr. Branch and Mr. Knight reviewed the request with the Board.
- There being no comments, Mr. Wolff closed public comment.
- *Ms. Stevens moved for approval based on the findings that there are extraordinary conditions as the property cannot be developed unless the driveway is configured as approved by SCDOT, the property is unique, there is no other way to design the driveway and it would not be a detriment as it is the safest design. Mr. Butner seconded the motion. Motion failed on a 2 to 5 vote with Mr. Butner and Ms. Stevens in favor; Mr. Wolff, Mr. Barrow, Mr. Hopkins, Mr. Duke, and Mr. Wood opposed.*

The Board convened for a break at 7:28 pm and reconvened at 7:35 pm.

7. **Case V-23-2021, Mill Street, TMS# 517-15-00-100. Request for relief from the strict application of §156.108 (A)(1) to allow fifty (50) foot one-way drive curb cut separation. The ordinance requires a 75-foot one-way drive curb cut separation.**

- Mr. Robertson reviewed staff comments with the Board.
- Mr. Branch and Mr. Knight reviewed the request with the Board.
- There being no comments, Mr. Wolff closed public comment.
- *Mr. Wolff moved for denial based on the findings that denial would not unreasonably restrict or prohibit the use of the property and the property*

configuration could lend itself to a different use. Mr. Wood seconded the motion.

- *Mr. Wood moved to amend the motion to include the findings that the request does not meet the four criteria, particularly that it would not be a substantial detriment to the adjacent property or public good and the character of the district would not be harmed by approval of the variance. Mr. Barrow seconded the amendment.*

- *Mr. Barrow moved to amend the agenda to add the findings that the third criteria has not been satisfied in that the conditions of the property would not unreasonably restrict or prohibit use of the property. Mr. Wood seconded the amendment. Amendment passed on a 4 to 3 vote with Mr. Wolff, Mr. Barrow, Mr. Hopkins, and Mr. Wood in favor; Mr. Butner, Ms. Stevens and Mr. Duke opposed.*

Mr. Wolff called for a vote on the first amendment that would add the finding that the request does not meet the four criteria particularly that it would not be a substantial detriment to the adjacent property or public good and the character of the district would not be harmed by approval of the variance. Amendment passed on a 4 to 3 vote with Mr. Wolff, Mr. Barrow, Mr. Hopkins, and Mr. Wood in favor; Mr. Butner, Ms. Stevens and Mr. Duke opposed.

- *Mr. Wolff called for a vote on the motion as amended. Motion passed on a 4 to 3 vote with Mr. Wolff, Mr. Barrow, Mr. Hopkins, and Mr. Wood in favor; Mr. Butner, Ms. Stevens and Mr. Duke opposed.*

8. Case V-24-2021, Mill Street, TMS# 517-15-00-100. Request for relief from the strict application of §156.227 (A) to allow 30% tree protection zone encroachment.

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Branch asked what options would be available to the applicant. Mr. Robertson reviewed the options available with the Board. Mr. Branch stated that the Board would like withdrawal and re-apply

- *Mr. Wood moved to accept the withdrawal of the request by the applicant. Mr. Duke seconded the motion. All in favor.*

9. Case V-25-2021, 506 Royall Avenue, TMS# 532-05-00-072. Request for relief from the strict application of §156.076 (A)(2) to allow an accessory structure height of 23-foot, 4-inch (23'4"). The ordinance limits accessory structure height to fifteen (15) feet.

- Mr. Robertson reviewed staff comments with the Board.

- Mr. and Ms. Greg Petraetis, owners, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comments.

- Mr. Wolff administered the oath to Mr. Kenneth Godsell. Mr. Godsell stated that the construction of the garage would take approximately two months. Allowing the structure to be built ahead of the issuance of the ADU permit, would allow the majority of the structure to be built and then converted once the permit is issued.

- *Mr. Butner moved for approval based on the findings that the criteria has been met as there are extraordinary conditions because of the developmental needs of the family member. Mr. Hopkins seconded the motion.*

- *Mr. Butner amended his motion to include the findings that the property does not allow for an independent living condition as deemed necessary by a medical professional, conditions do not apply to other properties in the vicinity due to the unique medical condition, because of these conditions, the property would be unreasonably restricted or prohibited, and would not be a detriment to adjacent property as the neighbors are in favor of the request. Mr. Hopkins seconded the amendment. Motion passed on a 5 to 1 vote with Mr. Butner, Mr. Wolff, Mr. Barrow, Mr. Hopkins, and Mr. Duke in favor; Ms. Stevens opposed, and Mr. Wood abstaining.*

- *Mr. Wolff called for a vote on the amended motion. Motion passed on a 4 to 3 vote with Mr. Butner, Mr. Wolff, Mr. Hopkins, and Mr. Duke in favor; Mr. Barrow, Ms. Stevens and Mr. Wood opposed.*

10. Case V-26-2021, 1417 Appling Drive, TMS# 560-06-00-093. Request for relief from the strict application of §156.303 (C) to allow a ten (10) foot encroachment into required 25-foot rear yard (setback).

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Kyle Bruton, owner, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comments.

Mr. Hopkins moved for approval. Mr. Hopkins withdrew his motion.

- *Ms. Stevens moved for approval based on the findings that there are extraordinary conditions due to saving the tree in the front yard which required house to be located further back on lot, the rear property line dips in and causes shorter rear setback, denial of the request would unreasonably restrict or prohibit use of the property, particularly restricting outdoor use of the property during these times of COVID when outdoor use and family is important, and that there is no detriment to neighboring properties. Mr. Duke seconded the motion. Motion passed on a 6 to 1 vote with Mr. Butner, Mr. Wolff, Mr. Barrow, Mr. Hopkins, Ms. Stevens and Mr. Duke in favor; Mr. Wood opposed.*

H. Approval of Final Orders

- The Board signed final orders.

There being no further business, the meeting adjourned at 9:17 pm.

Submitted by,
L. Lynes
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